

		Plaintiff's objection to Defendant's Ex. A at 23:20-21 and 24:13-21 is OVERRULED. <u>New Evidence on Reply</u> While new evidence is generally not permitted on reply, the court may consider new evidence that responds to a new issue raised on opposition. (<i>See, e.g., Carbajal v. CWPSC, Inc.</i> (4-3, 2016) 245 Cal.App.4th 227, 241.) The court considered the supplemental deposition testimony submitted by Plaintiff on reply, which provides context for the deposition testimony cited by Defendant on opposition. (See Ellis Reply Decl. [ROA # 57], Ex. A.) <u>Request for Judicial Notice</u> Plaintiff's request for judicial notice on reply (ROA # 59) is DENIED as unnecessary. A court may deny a request for judicial notice, where the material referenced is not "necessary, helpful, or relevant." (<i>See Zucchet v. Galardi</i> (2014) 229 Cal.App.4th 1466, 1474, fn. 5 [citing <i>Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal.4th 739, 748, fn. 6].) <u>Continuance</u> Defendant/Cross-Complainant's requests a continuance to complete discovery is DENIED as unnecessary. Defendant to give notice.
11	Bubonic v. Park Newport LP	Plaintiff Mary Ann Denise Bubonic's motion to quash subpoenas issued to Hoag Hospital – Newport Beach, Hoag Hospital -Newport Beach (billing department), UCI Medical Center, UCI Medical Center (billing department), and Physical Therapy and Newport Hand Center is DENIED, subject to the protective order as discussed below. 1. <u>Objections</u> The court OVERRULES Plaintiff's objection to Page 2, lines 9-11 of the declaration of Mr. Rodriguez. The court SUSTAINS Plaintiff's hearsay and best evidence objections as to the remaining paragraphs. 2. <u>Legal Authority for Motion</u> Code Civ. Proc. § 1987.1(a) states: "If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In